

25STLC00319 25STLC00319

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-14

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Case Number: 25STLC00319 Hearing Date: July 14, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Kimberly Yvette Hampton's Renewed Motion for Immediate Release of Vehicle is denied.

Plaintiff Kimberly Yvette Hampton's Motion for Immediate Release of Vehicle is denied.

Trial is continued

to a later time on the same date: July 17, 2026, at 1:30 PM in Dept. 26 of the Spring Street Courthouse. All parties and witnesses must appear in person.

Defendant is

ordered to prepare and bring to trial five copies of the exhibit binder containing both parties' exhibits.

Judicial Assistant to give notice.

parties

exhibits.

Analysis:

Plaintiff, in propria persona, Kimberly Yvette Hampton ("Plaintiff"), brought this action for violations of the Rosenthal Fair Debt Collection Practices Act (RFDCPA), California's Unfair Competition Law (UCL), and regulations set forth by the California Department of Financial Protection and Innovation (DFPI) against

Defendants Jose G. Franco (erroneously sued as Jose G. Franco dba Franco's Towing Service) ("Defendant Franco") and Five Star Registration ("Defendant

Five Star”) on January 21, 2025. Plaintiff’s ex parte applications for injunctive relief were denied on January 21 and 23, 2025. (Minute Orders, 01/23/25 and 01/25/25.)

Plaintiff’s Motion for Summary Judgment was denied on February 19, 2025. (Minute Order, 02/19/25.) At that hearing, the Court also set an Order to Show Cause Re: Why Plaintiff Should not be Sanctioned \$100.00 for Failure to Comply with CCP in the Litigation of This Case. (Ibid.) On March 3, 2025, Plaintiff’s Motion to Compel Discovery was denied and the Order to Show Cause was discharged. (Minute Order, 03/03/25.)

Defendant Franco filed an Answer to the Complaint on May 5, 2025. On June 2, 2025, Plaintiff sought to file a First Amended Complaint without leave to amend. The First Amended Complaint has not been accepted for filing as there is no Court order permitting it in accordance with Code of Civil Procedure sections 472 and 473, subdivision (a)(1). On the same day, Plaintiff filed a Renewed Motion for Immediate Possession of Trust Owned Property. The Renewed Motion was denied on August 20, 2025. (Minute Order, 08/20/25.)

The matter came for trial on January 29, 2026, at which time service of the Summons and Complaint upon Defendant Five Star was discussed. (Minute Order, 01/29/26.) Plaintiff was ordered to file the proof of service and an Order to Show Cause regarding said service was set for April 8, 2026. (Ibid.) At the Order to Show Cause, the Court granted Plaintiff’s request to dismiss Defendant Five Star from the action. (Minute Order, 04/08/26.)

On April 9, 2026, Plaintiff filed the instant Motion for Immediate Release of Vehicle. Defendant filed an opposition on May 12, 2026.

Discussion

Plaintiff filed this action, requesting that the Court immediately restrain Defendant from selling Plaintiff’s alleged motor vehicle (“the subject vehicle”) in a pending sale, or placing a lien on the property pending the resolution of this case. (Compl., p. 6:8-11.) The Court previously denied Plaintiff’s Renewed Motion for Immediate Possession of Trust Owned Property, which was brought pursuant to Code of Civil Procedure

section 526. (Minute Order, 08/20/25.) In the instant Motion, Plaintiff again seeks possession of the subject vehicle, despite the Court's prior order. In this respect, and others, the instant Motion is defective.

First, as Defendant points out, the Motion is not supported by any Notice of Motion as required by Code of Civil Procedure section 1010. Without the Notice of Motion, it is not clear upon which grounds and papers Plaintiff seeks an order giving her possession of the subject vehicle. Even if the Court were to find that the Motion itself provides the grounds upon which Plaintiff seeks relief—it cites the Fourth and Fourteenth Amendments and various provisions of the California Vehicle Code—none of these permits her to seek injunctive relief. Although seeking the same relief sought in Plaintiff's previously filed Renewed Motion for Immediate Possession of Trust Owned Property, the instant Motion does not cite the injunctive relief statute, Code of Civil Procedure section 526. Section 526 explains under what circumstances a preliminary injunction can be granted before judgment. (See Code Civ. Proc., §§ 526, 527.)

Next, to the extent Plaintiff again seeks possession of the subject vehicle, the request is not brought pursuant to the correct legal authority. When a party seeks the same relief that was previously denied, it must bring a renewed motion pursuant to Code of Civil Procedure section 1008, subdivision (b). (*California Correctional Peace Officers Ass'n v. Virga* (2010) 181 Cal.App.4th 30, 43, fn. 11; see also *Tate v. Wilburn* (2010) 184 Cal.App.4th 150, 156-157.) When a motion has been denied in whole or in part, the moving party may apply again for the same relief at a later time only upon "new or different facts, circumstances or law." (Code Civ. Proc., § 1008, subd. (b); see *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 969-970.) Also, the statute requires the moving party "to show a satisfactory explanation for failing to provide the evidence earlier, which can only be described as a strict requirement of diligence," the purpose of which is to incentivize parties "to efficiently marshal their evidence." (*Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1199 [citing *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690].)

The instant Motion is neither brought pursuant to Code of Civil Procedure section 1008, nor fulfills its statutory requirements. Plaintiff's supporting declaration does not mention her earlier request for injunctive relief, and fails to demonstrate new or different facts, circumstances or law, nor provide a satisfactory explanation for failing to provide the evidence earlier. Therefore, the Court

lacks the jurisdiction to grant the renewed request to give Plaintiff possession of the subject vehicle. (Code Civ. Proc., § 1008, subd. (e); see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1106.)

The Court

also notes that trial in this matter is set for July 17, 2026, which is three days after the hearing on this motion. Plaintiff has not shown any basis to grant "immediate release" of the vehicle to her possession three days before adjudication of the entire dispute on the merits.

Based on the

foregoing, the Court finds Plaintiff's request for an injunction granting her possession of the subject vehicle cannot be granted.

The Court

continues trial to 1:30 PM on July 17, 2026 in this Department. All parties and witnesses must appear in person. The Court has reviewed the Declaration of Stephen Devlin, filed July 9, 2026. Defendant is ordered to prepare and bring to trial five copies of the exhibit binder containing both parties' exhibits.

Conclusion

Plaintiff Kimberly Yvette Hampton's Motion for Immediate Release of Vehicle is denied.

Trial is continued

to a later time on the same date: July 17, 2026, at 1:30 PM in Dept. 26 of the Spring Street Courthouse. All parties and witnesses must appear in person.

Defendant is

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